# RETAIL LEASE AGREEMENT

Cascade Commons · Landlord and Whole Health Market · Tenant

THIS RETAIL LEASE AGREEMENT (this "Lease") is made and entered into as of December 15, 2020, by and between **CASCADE COMMONS PROPERTY OWNER, LLC**, a Washington limited liability company ("Landlord"), and **WHOLE HEALTH MARKET, INC.**, a Washington corporation ("Tenant").

## ARTICLE 1 — BASIC LEASE PROVISIONS

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| **1.1 Premises** | Suite 100, Cascade Commons, consisting of approximately **9,200 rentable square feet**. |
| **1.2 Building** | Cascade Commons, containing approximately **26,000 rentable square feet** in the aggregate. |
| **1.3 Tenant's Proportionate Share** | **35.38%**, being the rentable area of the Premises divided by the rentable area of the Building. |
| **1.4 Commencement Date** | **January 1, 2021** |
| **1.5 Expiration Date** | **December 31, 2028** |
| **1.6 Lease Type** | **Triple Net (NNN)**. Tenant shall pay its Proportionate Share of Operating Expenses, Real Property Taxes and Insurance in addition to Base Rent. |

## ARTICLE 2 — TERM

2.1 The term of this Lease shall commence on the Commencement Date set forth in Section 1.4 and shall expire at 11:59 p.m. on the Expiration Date set forth in Section 1.5, unless sooner terminated or extended in accordance with the terms hereof.

## ARTICLE 3 — RENT

3.1 Tenant shall pay Base Rent in monthly installments, in advance, on the first day of each calendar month during the Term, without demand, deduction or offset.

3.2 All amounts payable by Tenant under this Lease other than Base Rent shall constitute Additional Rent and shall be payable within thirty (30) days after Tenant's receipt of Landlord's statement therefor.

## ARTICLE 6 — COMMON AREA MAINTENANCE

6.1 **Definition.** “Common Area Maintenance Costs” means all costs actually incurred by Landlord in operating, managing, maintaining, repairing and insuring the Common Areas of the Building, including landscaping, parking area maintenance, lighting, janitorial services for Common Areas, snow and refuse removal, security, utilities serving the Common Areas, property insurance premiums, management fees, and reasonable reserves for the replacement of Common Area equipment.

6.2 **Tenant's Obligation.** Tenant shall pay to Landlord, as Additional Rent, Tenant's Proportionate Share of Common Area Maintenance Costs for each calendar year during the Term.

6.3 **Annual Reconciliation.** Within one hundred twenty (120) days after the end of each calendar year, Landlord shall furnish to Tenant a written statement setting forth in reasonable detail the Common Area Maintenance Costs incurred for such calendar year and Tenant's Proportionate Share thereof.

6.4 **Cap on Common Area Maintenance Costs.** Notwithstanding anything to the contrary contained in this Lease, Tenant's Proportionate Share of Common Area Maintenance Costs payable in respect of any calendar year shall not increase by more than five percent (5%) over the amount of Tenant's Proportionate Share of Common Area Maintenance Costs payable in respect of the immediately preceding calendar year. Any Common Area Maintenance Costs in excess of the foregoing cap shall be borne solely by Landlord and shall not be billed to, or recoverable from, Tenant.

6.5 **Base Amount.** For purposes of applying the cap set forth in Section 6.4, the parties acknowledge and agree that Tenant's Proportionate Share of Common Area Maintenance Costs for the immediately preceding calendar year was **Thirty-Three Thousand and 00/100 Dollars ($33,000.00)**.

6.6 **No Exclusions.** Tenant acknowledges that no category of Common Area Maintenance Costs is excluded from Tenant's Proportionate Share under this Lease, except as expressly limited by the cap set forth in Section 6.4.

## ARTICLE 7 — AUDIT RIGHTS

7.1 **Tenant's Right to Audit.** Tenant shall have the right, at Tenant's sole cost and expense, to audit Landlord's books and records relating to Common Area Maintenance Costs for the calendar year covered by any reconciliation statement, provided that Tenant delivers written notice of its election to audit within **ninety (90) days after Tenant's receipt of such reconciliation statement**. If Tenant does not deliver such notice within said ninety (90) day period, Landlord's statement shall be deemed final and binding upon Tenant.

7.2 **Overpayment.** If any audit conducted in accordance with Section 7.1 discloses that Tenant was billed for amounts in excess of those properly payable under this Lease, Landlord shall credit the amount of such overbilling against the next installments of Additional Rent coming due.

## ARTICLE 8 — MISCELLANEOUS

8.1 This Lease constitutes the entire agreement between the parties with respect to the Premises and supersedes all prior negotiations, representations and agreements, whether written or oral.

8.2 This Lease shall be governed by and construed in accordance with the laws of the State of Washington.

| **LANDLORD** | **TENANT** |
| --- | --- |
| CASCADE COMMONS PROPERTY OWNER, LLC | WHOLE HEALTH MARKET, INC. |